

of Jill Jaffe shall be filed with the Court and served no later than March 20, 2026. MWC and Plaintiff shall file a responsive pleading no later than thirty (30) days from the date of service.

3. T-Mobile's counsel shall prepare a proposed order that conforms to the foregoing and e-file it with Court no later than five (5) days from the date of the hearing.
4. No appearance is required at the March 11, 2026 hearing.

5. 9:00 AM CASE NUMBER: C23-01845

CASE NAME: RAUL INIGUEZ VS. FIDENCIO GARCIA

HEARING ON SUMMARY MOTION

FILED BY: ACME BUILDERS, INC.

TENTATIVE RULING:

Before the Court is a motion for summary judgment/adjudication filed by defendant Acme Builders, Inc. On the Court's own motion, the hearing on the motion is **continued to 9:00 a.m. on March 18, 2026.**

6. 9:00 AM CASE NUMBER: C23-02327

CASE NAME: TORSTEN BRUNE VS. ACE ROBEY

***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL**

FILED BY: ROBEY, ACE

TENTATIVE RULING:

Summary

Plaintiff's counsel, Newmeyer & Dillion LLP, by and through Tara C. Dudum, Esq. and Madison J. Rolapp, Esq., filed a Motion to Be Relieved as Counsel for Plaintiff Ace Robey ("Motion"). The Motion is **granted** as set forth herein.

Background

This is a breach of contract case where Plaintiff Ace Robey alleges a breach of contract for commercial space. There are also certain cross-allegations involving a 1972 Fiat car.

Plaintiff's counsel, Tara C. Dudum, filed a Motion to Be Relieved as Counsel on December 12, 2026, supported by her declaration claiming that "Irreconcilable differences have arisen resulting in a breakdown of attorney-client communications making it unreasonably difficult to continue representing the client." The trial for this case is set for July 20, 2026. An issue conference is scheduled for June 4, 2026.

Analysis

Cal. Rules of Court Rule No. 3.1362 and Cal. Code of Civ. Proc. §§284(1) and (2) sets forth the standard and procedure to be relieved as counsel of record. The Code permits an attorney to be changed at any time before or after judgment or final determination "upon the consent of both client and attorney," or "upon order of the court, upon the application of either client or attorney, after notice from one to the other." Defendant's Counsel has complied with the provisions of this rule and statute providing notice to Plaintiff and supporting this motion with a declaration articulating the reasons for

withdrawal.

The Court finds that there is good cause to grant this Motion to relieve Plaintiff's Counsel. The Court acknowledges that the prejudice to Plaintiff is minimal, as there is ample time for Plaintiff to retain trial counsel, or, in the alternative, to represent himself.

Ruling

After reviewing the papers and arguments submitted by counsel and after considering and weighing the prejudice to both sides, and reviewing the relevant statutory and decisional authority, the Court finds that there is good cause to grant the Motion of Plaintiff's Counsel to be Relieved as Counsel of Record. The makes the following orders:

1. This motion is **granted**.
2. The Court will execute the Proposed Order Granting Attorney's Motion to be Relieved as Counsel (Judicial Council Form MC-053) as submitted on December 12, 2025. The withdrawal is effective immediately.
3. Defendant's Counsel is ordered to serve a copy of the Order (MC-053) to Plaintiff by mail at his last known address, along with a change of address form, Judicial Council Form MC-040, instructing the former client to fill-out and file the change of address form with the Court.
4. Defendant's counsel shall file a proof of service form indicating that the client was served with the Court's Order (MC-053) and the Change of Address form (MC-040).

7. 9:00 AM CASE NUMBER: C23-02436

CASE NAME: DENNIS WANKEN VS. NAHLA DROUBI

***HEARING ON MOTION IN RE: CONTINUE TRIAL**

FILED BY: WANKEN, DENNIS

TENTATIVE RULING:

Summary

This Motion is related to Lines 8 and 9. This tentative ruling is for Line 7 only. Plaintiffs and Cross-Defendants Dennis Wankin and Eleni Wanken's Motion to Continue the trial is **granted** as set forth in this order. Counsel are ordered to appear at the hearing on March 11, 2026 for a Trial Setting Conference.

Background

This lawsuit pertains to joint easement that relates to properties owned by both parties in Moraga, California, and the alleged breach of a maintenance agreement of a surface roadway on the easement.

On January 6, 2026, Plaintiff and Cross Defendant Dennis Wankin and Eleni Wanken ("Plaintiffs") filed this Motion to Continue the Trial ("Motion") of this action which is currently set for April 6, 2026. The Motion is supported by a Memorandum of Points and Authorities and Declaration of Counsel Gary Sloboda asserting good cause due to cross-motions for leave to amend operative pleadings filed by both parties. Specifically,

1. Defendant has filed a motion for leave to amend her First Amended Cross-Complaint to add